

STATE OF NEW YORK

465--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. MAGNARELLI, OTIS, KELLES -- Multi-Sponsored by --
M. of A. DAVILA -- read once and referred to the Committee on Energy
-- recommitted to the Committee on Energy in accordance with Assembly
Rule 3, sec. 2 -- committee discharged, bill amended, ordered
reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to creating a resilient electric vehicle charging system pilot program; and providing for the repeal of such provisions upon the expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 66-x to read as follows:

3 § 66-x. Resilient electric vehicle charging system pilot program. 1.
4 For the purposes of this section:

5 (a) "Resilient carbon free power generation" shall mean only those
6 electric generating facilities which:

7 (i) are connected to the electric system and operated in conjunction
8 with an electric corporation's transmission and distribution system;

9 (ii) are operated in compliance with any standards and requirements
10 established pursuant to this section;

11 (iii) have black start and disconnect capability; and

12 (iv) do not require the use of fossil fuels.

13 (b) "Resilient electric vehicle charging system" shall mean an elec-
14 tric vehicle (EV) microgrid designed to provide uninterrupted electric
15 service for electric vehicle charging throughout an extended outage.

16 (c) "Extended outage" shall mean an outage of the electric distrib-
17 ution system that continues for a period of twenty-four hours or longer.

18 (d) "Uninterrupted" shall mean that the resilient electric vehicle
19 charging system generates electricity throughout an extended outage.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD02925-02-6

1 (e) "EV microgrid" is a group of energy generating resources using
2 resilient carbon free power generation and energy storage within clearly
3 defined electrical boundaries that acts as a single controllable entity
4 with respect to the grid.

5 2. The chair shall promulgate such rules, policies, and procedures
6 necessary and appropriate for creating a resilient electric vehicle
7 charging system pilot program to facilitate electric vehicle charging
8 with a focus on emergency response needs during extended outages. Any
9 such pilot program shall be established using existing financial
10 resources.

11 § 2. No later than December 30, 2029, the public service commission
12 shall prepare and publish a report outlining at a minimum: (a) the
13 number of unique instances when a resilient electric vehicle charging
14 system provided power during an extended outage; (b) the actual costs of
15 the pilot program; and (c) any additional information relevant to
16 assessing program effectiveness. Such report may be incorporated into
17 other reports required of the public service commission.

18 § 3. This act shall take effect immediately and shall expire and be
19 deemed repealed April 1, 2030.